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# General Knowledge

## Indian Polity

## STUDY NOTES

### Fundamental Duties Article (51A)

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# Fundamental Duties Article (51A)

## Introduction

- The concept of Fundamental Duties was incorporated into the Indian Constitution by the 42nd Constitutional Amendment Act of 1976.
- These duties emphasize the responsibility of citizens to contribute positively to society and the nation's well-being.
- They are outlined in Part IV-A of the Constitution, under Article 51A.

## Historical Background

- The Swaran Singh Committee, established in 1976 during the Emergency, recommended the inclusion of Fundamental Duties in the Constitution.
- The inspiration for these duties came from the Constitution of the USSR, which outlined the duties of citizens to balance their rights.

### 42nd Amendment Act, 1976

- The 42nd Amendment introduced 10 Fundamental Duties to the Indian Constitution, aimed at promoting responsible citizenship and fostering national unity.
- The purpose was to guide citizens in fulfilling their responsibilities while enjoying their rights.

### Verma Committee on Fundamental Duties (1999)

- The Justice J.S. Verma Committee was appointed to review the status of Fundamental Duties and suggest methods for their effective implementation.
- The Swaran Singh Committee introduced these duties, but there was no mechanism in place for their enforcement.
- The Verma Committee aimed to improve citizen compliance with these duties by offering suggestions for better integration and internalization of these responsibilities.

### 86th Amendment Act, 2002

- The 86th Amendment added the 11th Fundamental Duty: to provide opportunities for education to children between the ages of 6 and 14 years.
- This amendment aligns with the Right to Education Act (Article 21A), further emphasizing the state's role in providing education to children.

## Supreme Court Order on Fundamental Duties

- In 2016, the Supreme Court of India issued an order in the Shyam Narayan Chouksey vs. Union of India case, requiring the National Anthem to be played in cinemas with audiences standing in respect.

- This decision was linked to Article 51A(a), which mandates respect for the National Flag and National Anthem.
- The order was revised in 2018, but it highlighted the role of the judiciary in promoting civic responsibility.

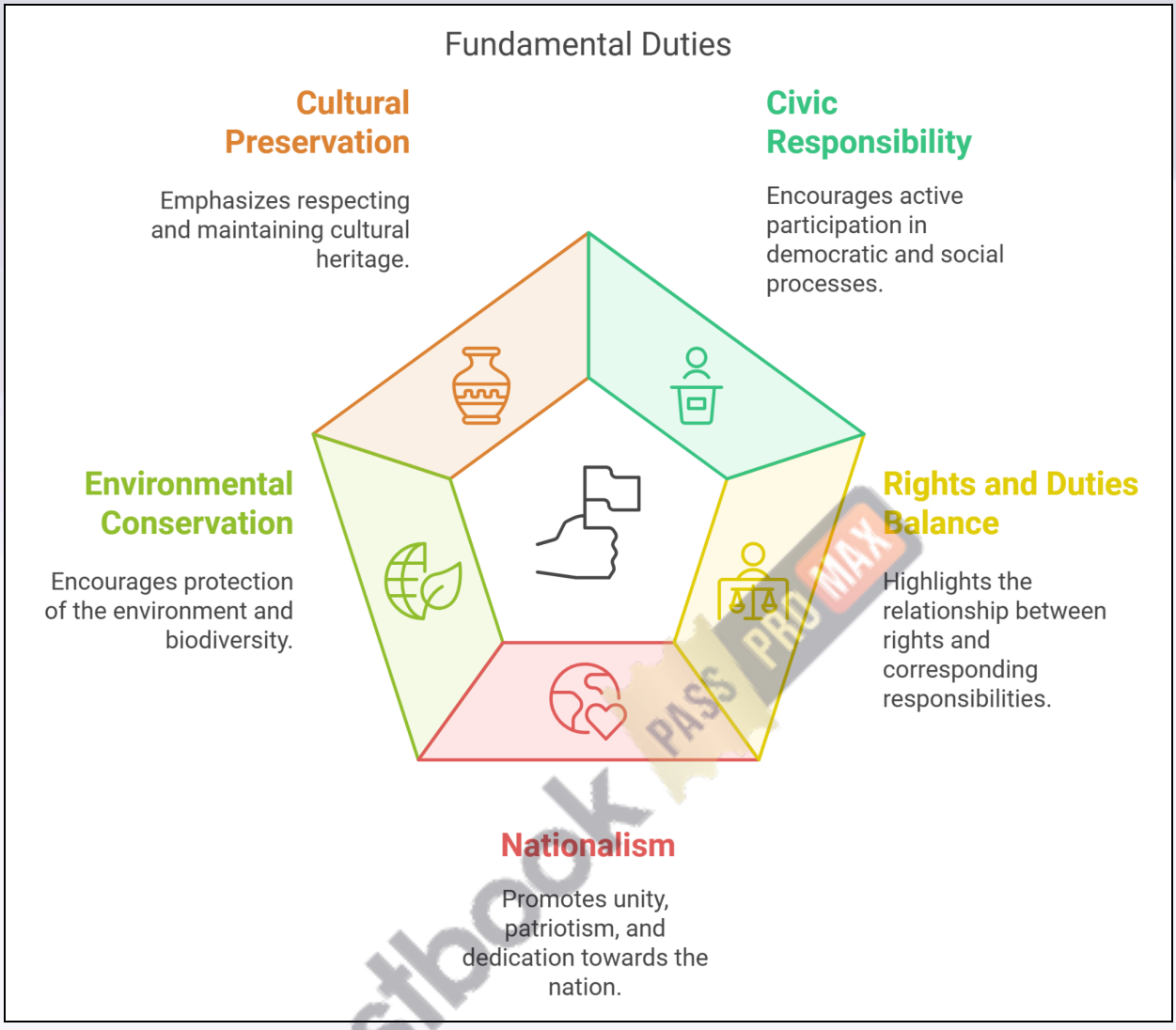
## The list of 11 Fundamental Duties under Article 51-A

| S.No | Fundamental Duties |
|---|---|
| 1. | Abide by the Indian Constitution and respect its ideals and institutions, the **National Flag, and the National Anthem** |
| 2. | Cherish and follow the noble ideals that inspired the national struggle for freedom |
| 3. | Uphold and protect the **sovereignty, unity, and integrity of India** |
| 4. | Defend the country and render national service when called upon to do so |
| 5. | Promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic and regional or sectional diversities and to renounce practices derogatory to the dignity of women |
| 6. | Value and preserve the rich heritage of the country's composite culture |
| 7. | **Protect and improve the natural environment** including forests, |

| | |
|---|---|
| | lakes, rivers, and wildlife and to have compassion for living creatures |
| 8. | **Develop scientific temper**, humanism, and the spirit of inquiry and reform |
| 9. | **Safeguard public property** and abjure violence |
| 10. | Strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavor and achievement |
| 11. | Provide opportunities for **education to his child** or ward between the **ages of six and fourteen years**. (This duty was added by the **86th Constitutional Amendment Act, 2002)** |

## Significance of Fundamental Duties

- **Promoting Civic Responsibility:** They encourage active participation in the democratic and social processes of the country.
- **Balancing Rights and Duties:** Fundamental Duties complement the rights provided in Part III, highlighting that rights come with corresponding responsibilities.
- **Fostering Nationalism:** These duties aim to promote a sense of unity, patriotism, and dedication towards the nation.
- **Environmental Conservation:** Encourages citizens to take an active role in protecting the environment and preserving biodiversity.
- **Cultural Preservation:** Emphasizes the importance of respecting and maintaining the nation's cultural heritage.




## Non-Justiciable Nature

- Fundamental Duties are not legally enforceable (non-justiciable), unlike Fundamental Rights.
- They serve as moral obligations, encouraging citizens to follow them voluntarily.
- While they are not enforceable by law, they are meant to promote civic awareness and a sense of national responsibility.

## Criticism

- **Limited Impact:** Since they are not legally enforceable, their practical effect is limited.
- **Lack of Awareness:** There is a lack of widespread understanding about these duties, reducing their effectiveness.

- **Overemphasis on Rights:** Critics argue that the focus on rights often outweighs the importance of duties.

## Current Relevance

- Fundamental Duties are still relevant in modern India, especially in promoting national unity, environmental protection, and education.
- There have been suggestions to enhance awareness about these duties and possibly make them more enforceable to ensure active participation from citizens.

## Conclusion

- Fundamental Duties are an essential part of the Constitution, serving as a reminder to citizens that enjoying rights comes with responsibilities.
- Despite not being enforceable, they play a crucial role in fostering responsible citizenship and supporting nation-building efforts.

## Quick Revision Points

- Introduced by **42nd Amendment Act, 1976**, based on recommendations of the **Swaran Singh Committee.**
- Initially Added **10** Fundamental Duties.
- **11th Duty Added by 86th Amendment Act, 2002** (Duty to provide education to children aged 6-14).
- **Article 51A under Part IV-A** of the Constitution.
- **Non-justiciable** but essential for promoting civic sense and national integration.

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